

1 correct?

2 A. Well, I would call what's happening to me
3 interrogated. They're asking me -- that's
4 interrogation, asking me medical questions, isn't
5 that interrogation? I would see that -- I say, yes,
6 I was interrogated throughout the whole thing --

7 Q. It's your position that before booking an
8 inmate into a jail and asking medical question jail
9 staff is required to read Miranda rights?

10 A. They were interrogating me the whole time.

11 Q. Now you're being wheeled around to have your
12 photograph taken. Okay?

13 A. Okay. And they took a whole bunch of
14 pictures.

15 Q. This is Sergeant Fyten taking your
16 photograph, correct?

17 A. Right.

18 Q. Originally they tried to take your
19 photograph while you were sitting down in the
20 wheelchair, correct?

21 A. Right. And they were successful at it.
22 They took a lot of pictures.

23 Q. How do you know they were successful? How
24 do you know they got a successful --

25 A. Because they just kept taking pictures.

1 Q. Do you have any personal knowledge whether
2 any of the pictures taken of you while you were
3 seated in the wheelchair were sufficient for
4 purposes of the booking process.

5 A. I think they all were, yeah.

6 Q. What's your basis for that belief?

7 A. Because they were taking -- they kept taking
8 them.

9 Q. Okay. And here were you asked at any point
10 in time to stand up to be photographed?

11 A. No. They just came over and lifted me at
12 some point.

13 Q. Why didn't you stand of your own volition
14 during that point in time, because you're about to
15 see --

16 A. Because I didn't.

17 Q. You're about to see --

18 A. Your -- your -- your people captured me. I
19 was captured by them. I didn't know what to do.
20 I'd answer a question, that was wrong. I'd not
21 stand up, that was wrong. I'd sit down, that was
22 wrong. They say they have a successful -- it went
23 on and on and on. See, they're taking pictures.
24 And I'm telling, don't take my picture looking like
25 this, because you can see how good I looked when I

1 started out in this process in court, and this was
2 like the middle of the night to me. And they kept
3 saying, well, you look beautiful. And there's four
4 of them there. Even the woman said it.

5 Q. Okay. So you were telling them, don't take
6 my picture because I look -- don't look good, and
7 they were saying you look beautiful?

8 A. I was saying, please don't take my picture
9 looking like this, please don't take my picture.

10 Q. And that's where the beautiful comment came
11 up?

12 A. And they said, you look beautiful, you look
13 beautiful.

14 Q. Okay. And there you were held up -- let's
15 go back a couple.

16 A. I thought they were done, because they kept
17 saying, you look beautiful, and taking pictures. So
18 then they were taking me away and then they put me
19 back to take some more pictures.

20 Q. Okay. And they wheeled you back in to take
21 a picture standing up, right?

22 A. No, they lifted me up --

23 Q. Now, are you standing of your own --

24 A. -- grabbed me and lifted me up.

25 Q. Are you standing of your own free will

1 there?

2 A. No, they grabbed me and lifted me up. I
3 might have been standing, but they grabbed me, and I
4 think I am standing at this point, because they
5 grabbed me and lifted me up.

6 Q. Okay. Did you feel like you were being
7 cooperative in the fingerprinting and photographing
8 process?

9 A. I was doing everything they told me to do.
10 All of my liberties were gone from beginning to end.
11 Whatever I did, they didn't -- they didn't like it,
12 they liked it, I -- you didn't know how to
13 cooperate. I was very cooperative from beginning to
14 end. I did everything I was told. I was quiet. I
15 talked. From beginning to end I just did what I was
16 told when all of my liberties were stripped from me
17 down to nothing.

18 MR. TIMMERMAN: Mark this please, if we
19 could, Exhibit 9.

20 (MacDonald Deposition Exhibit No. 9
21 marked for identification.)

22 BY MR. TIMMERMAN:

23 Q. Do you recall, Ms. MacDonald, anyone telling
24 you that you needed to complete the booking process
25 before you could be released from the jail?